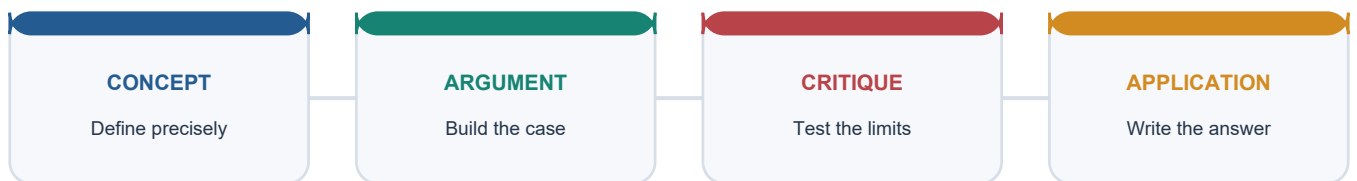


COMPLETE LEARNING SESSION

High Court and Subordinate Courts - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

High Court and Subordinate Courts - Solved Practice Workbook

Exactly 32 original MCQs appear before every PYQ. The key is ABCD repeated eight times. Each of the 128 option explanations and all 32 Examiner traps are question-specific.

BASIC MCQS / REMEDIATION

Exactly 32 original MCQs - ABCD x 8

MCQ 1. Article 214 and common courts

Which statement is constitutionally correct?

A. Article 214's State-wise default operates with Article 231's power to establish a common High Court. B. Every Union Territory must have an independent High Court. C. Article 232 currently creates circuit benches. D. A common High Court merges the participating States' judicial services.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'Article 214's State-wise default operates with Article 231's power to establish a common High Court.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'Every Union Territory must have an independent High Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'Article 232 currently creates circuit benches.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'A common High Court merges the participating States' judicial services.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 1: The numerical phrase 'for each State' is a default, not a prohibition on common High Courts.

MCQ 2. Court of record

Which provision makes every High Court a court of record with contempt power?

A. Article 216. B. Article 215. C. Article 225. D. Article 227.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 216.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 215.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 225.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 227.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 2: The Contempt of Courts Act regulates; it does not create the Article 215 power.

MCQ 3. Composition

Under Article 216, a High Court consists of:

A. only a Chief Justice. B. a constitutionally fixed national number of judges. C. a Chief Justice and such other judges as are appointed. D. a Chief Justice plus an elected State judicial council.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'only a Chief Justice.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'a constitutionally fixed national number of judges.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'a Chief Justice and such other judges as are appointed.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'a Chief Justice plus an elected State judicial council.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 3: Do not convert a dated sanctioned-strength figure into constitutional composition.

MCQ 4. Appointment text

A puisne High Court judge is appointed by the President after constitutionally specified consultation with:

A. only the Chief Justice of the High Court. B. the Chief Minister and Speaker. C. only the Chief Justice of India. D. the CJI, State Governor and Chief Justice of the High Court.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'only the Chief Justice of the High Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'the Chief Minister and Speaker.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'only the Chief Justice of India.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'the CJI, State Governor and Chief Justice of the High Court.' states the operative position.

Examiner trap 4: The collegium's numerical composition comes from case law and procedure, not Article 217's words.

MCQ 5. Qualification

Which is a valid High Court eligibility route under Article 217(2)?

A. Indian citizenship plus ten years in a judicial office in India. B. Recognition as a distinguished jurist without professional experience. C. Five years as a High Court advocate. D. Membership of a State legislature for ten years.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Indian citizenship plus ten years in a judicial office in India.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Recognition as a distinguished jurist without professional experience.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Five years as a High Court advocate.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Membership of a State legislature for ten years.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 5: The distinguished-jurist route belongs to Supreme Court eligibility, not High Court eligibility.

MCQ 6. Oath

A High Court judge ordinarily makes the constitutional oath before:

- A. the President personally. B. the Governor or a person appointed by the Governor. C. the Chief Justice of India only. D. the State Legislative Assembly.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the President personally.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the Governor or a person appointed by the Governor.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the Chief Justice of India only.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the State Legislative Assembly.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 6: Formal presidential appointment does not mean a presidentially administered oath.

MCQ 7. Retirement and removal

Which statement is correct?

- A. A High Court judge retires at 65 and is removable by the Governor. B. A High Court judge holds office during presidential pleasure. C. A High Court judge ordinarily retires at 62 and uses the Article 124(4)-type removal route through Article 218. D. Parliament removes a judge by ordinary majority.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'A High Court judge retires at 65 and is removable by the Governor.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'A High Court judge holds office during presidential pleasure.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'A High Court judge ordinarily retires at 62 and uses the Article 124(4)-type removal route through Article 218.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'Parliament removes a judge by ordinary majority.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 7: Appointment by the President does not create pleasure tenure.

MCQ 8. Post-retirement practice

Article 220 permits a former permanent High Court judge to plead or act:

A. in every subordinate court except the former district. B. before any tribunal but no court. C. only before the former High Court. D. before the Supreme Court and other High Courts, subject to the constitutional restriction.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'in every subordinate court except the former district.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'before any tribunal but no court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'only before the former High Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'before the Supreme Court and other High Courts, subject to the constitutional restriction.' states the operative position.

Examiner trap 8: The restriction is not a total nationwide bar on legal practice.

MCQ 9. Transfer

Which statement best states Article 222?

A. The President may transfer a High Court judge after consulting the CJI; consent is not an express condition. B. The Governor transfers judges after consulting the Chief Minister. C. Transfer is possible only on the judge's written request. D. Parliament transfers judges by resolution.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'The President may transfer a High Court judge after consulting the CJI; consent is not an express condition.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'The Governor transfers judges after consulting the Chief Minister.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'Transfer is possible only on the judge's written request.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'Parliament transfers judges by resolution.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 9: No-consent does not mean no review: mala fide or punitive use remains impermissible.

MCQ 10. Acting Chief Justice

Which Article addresses an Acting Chief Justice of a High Court?

A. Article 224A. B. Article 223. C. Article 229. D. Article 231.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 224A.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 223.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 229.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 231.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 10: Do not confuse leadership substitution with additional-judge or retired-judge capacity.

MCQ 11. Additional judge

An additional High Court judge under Article 224 may be appointed:

A. for life during arrears. B. only when the Chief Justice office is vacant. C. for a period not exceeding two years to meet temporary business increase or arrears. D. without the Article 217 appointment framework.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'for life during arrears.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'only when the Chief Justice office is vacant.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'for a period not exceeding two years to meet temporary business increase or arrears.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'without the Article 217 appointment framework.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 11: Temporary workload power cannot become indefinite insecure tenure.

MCQ 12. Retired judge sitting

Which combination is required under Article 224A?

A. Governor request and legislative approval. B. CJI request and Prime Minister approval. C. High Court collegium request without consent. D. Chief Justice request, prior President consent and the retired judge's consent.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'Governor request and legislative approval.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'CJI request and Prime Minister approval.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'High Court collegium request without consent.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'Chief Justice request, prior President consent and the retired judge's consent.' states the operative position.

Examiner trap 12: Article 224A is not Article 128 and does not deem the retiree a permanent judge.

MCQ 13. Article 225

Article 225 principally concerns:

A. continuance of existing High Court jurisdiction and law administered, subject to the Constitution and legislation. B. appointment of district judges. C. creation of an All India Judicial Service. D. Supreme Court advisory jurisdiction.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'continuance of existing High Court jurisdiction and law administered, subject to the Constitution and legislation.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'appointment of district judges.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'creation of an All India Judicial Service.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'Supreme Court advisory jurisdiction.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 13: Original civil jurisdiction must be traced to the relevant charter or statute, not assumed nationally.

MCQ 14. Article 226 scope

High Courts may issue writs under Article 226:

A. only against State Governments. B. for Fundamental Rights and for any other legal purpose. C. only after the Supreme Court refuses Article 32. D. only in criminal proceedings.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'only against State Governments.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'for Fundamental Rights and for any other legal purpose.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'only after the Supreme Court refuses Article 32.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'only in criminal proceedings.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 14: Wider purpose does not mean territorially unlimited or automatically available relief.

MCQ 15. Territorial jurisdiction

Article 226(2) permits jurisdiction where:

A. the petitioner resides, without more. B. the respondent prefers that forum. C. the cause of action arises wholly or partly within the territory, even if the authority is elsewhere. D. any national policy is mentioned.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'the petitioner resides, without more.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'the respondent prefers that forum.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'the cause of action arises wholly or partly within the territory, even if the authority is elsewhere.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'any national policy is mentioned.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 15: A trivial fact or residence alone cannot manufacture territorial nexus.

MCQ 16. Alternative remedy

The alternative-remedy rule under Article 226 is best described as:

A. an absolute constitutional ouster. B. a rule applicable only to habeas corpus. C. a statutory repeal of writ power. D. a self-imposed restraint with recognised exceptions such as rights, natural justice, jurisdiction and vires.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'an absolute constitutional ouster.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'a rule applicable only to habeas corpus.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'a statutory repeal of writ power.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'a self-imposed restraint with recognised exceptions such as rights, natural justice, jurisdiction and vires.' states the operative position.

Examiner trap 16: Failure to exhaust a remedy ordinarily affects entertainment, not the existence of Article 226 jurisdiction.

MCQ 17. Habeas corpus

Habeas corpus primarily tests:

A. the legality of detention. B. title to public office. C. performance of a public duty. D. validity of a completed tribunal order.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'the legality of detention.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'title to public office.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'performance of a public duty.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'validity of a completed tribunal order.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 17: It is not confined to detention ordered by a criminal court.

MCQ 18. Prohibition and certiorari

Which distinction is ordinarily correct?

A. Both writs only award damages. B. Prohibition prevents further jurisdictional error; certiorari generally quashes a completed defective order. C. Certiorari is available only against legislatures. D. Prohibition decides title to public office.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Both writs only award damages.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Prohibition prevents further jurisdictional error; certiorari generally quashes a completed defective order.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Certiorari is available only against legislatures.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Prohibition decides title to public office.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 18: The stage distinction is useful but the controlling concern remains jurisdictional or legal error.

MCQ 19. Tribunal review

L. Chandra Kumar (1997) held that:

A. all tribunals are unconstitutional. B. tribunal decisions bypass High Courts and go only to the Supreme Court. C. High Court review under Articles 226/227 is part of the Basic Structure and remains available over tribunals. D. Parliament may exclude all judicial review by ordinary law.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'all tribunals are unconstitutional.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'tribunal decisions bypass High Courts and go only to the Supreme Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'High Court review under Articles 226/227 is part of the Basic Structure and remains available over tribunals.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'Parliament may exclude all judicial review by ordinary law.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 19: Reviewability is not automatic invalidity and is not a routine factual appeal.

MCQ 20. Article 227

Which statement best describes Article 227?

A. It is limited to issuing habeas corpus. B. It applies only to executive departments. C. It is a statutory appeal from every order. D. It gives superintendence over territorial courts and tribunals, except Armed-Forces-law forums.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It is limited to issuing habeas corpus.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It applies only to executive departments.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It is a statutory appeal from every order.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It gives superintendence over territorial courts and tribunals, except Armed-Forces-law forums.' states the operative position.

Examiner trap 20: Superintendence is wide in source but restrained in exercise.

MCQ 21. Article 228

Article 228 is triggered when a subordinate-court case involves:

A. a substantial constitutional-interpretation question necessary for disposal. B. any disputed fact. C. a request by the Governor for advice. D. a transfer between two High Courts.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'a substantial constitutional-interpretation question necessary for disposal.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'any disputed fact.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'a request by the Governor for advice.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'a transfer between two High Courts.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 21: It is not the Supreme Court's Article 139A transfer power.

MCQ 22. Article 229

Who principally controls appointment of High Court officers and servants under Article 229?

A. The State Public Service Commission alone. B. The Chief Justice or an authorised court officer, subject to the Article's bounded provisos. C. The Chief Minister. D. Parliament.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'The State Public Service Commission alone.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'The Chief Justice or an authorised court officer, subject to the Article's bounded provisos.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'The Chief Minister.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'Parliament.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 22: Governor approval for financial service rules is not general executive control of the registry.

MCQ 23. UT jurisdiction

Which provision empowers Parliament to extend or exclude a High Court's jurisdiction in relation to a Union Territory?

A. Article 231 only. B. Article 241 only. C. Article 230. D. Article 232.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 231 only.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 241 only.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 230.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 232.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 23: Do not use repealed Article 232 as a current UT power.

MCQ 24. Common High Court

A common High Court for two or more States may be established under:

A. a Governor's ordinance. B. a Supreme Court administrative circular. C. a joint resolution of High Courts. D. a law of Parliament under Article 231.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a Governor's ordinance.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a Supreme Court administrative circular.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a joint resolution of High Courts.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a law of Parliament under Article 231.' states the operative position.

Examiner trap 24: A common court does not itself create permanent or circuit benches.

MCQ 25. District judge appointment

Article 233 places appointment, posting and promotion of district judges with:

A. the Governor in consultation with the High Court. B. the High Court acting alone. C. the State Public Service Commission alone. D. the Union Public Service Commission.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the Governor in consultation with the High Court.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the High Court acting alone.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the State Public Service Commission alone.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the Union Public Service Commission.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 25: Initial appointment language does not confer later career control on the executive.

MCQ 26. Direct district-judge route

For the direct Article 233(2) route, the Constitution requires, among other things:

A. five years as any government employee. B. at least seven years as advocate or pleader and High Court recommendation. C. a distinguished-jurist declaration. D. three years as Civil Judge only.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 233(2) specifies seven years' advocacy/pleadership and High Court recommendation for the direct route. Therefore 'five years as any government employee.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 233(2) specifies seven years' advocacy/pleadership and High Court recommendation for the direct route. Therefore 'at least seven years as advocate or pleader and High Court recommendation.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 233(2) specifies seven years' advocacy/pleadership and High Court recommendation for the direct route. Therefore 'a distinguished-jurist declaration.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 233(2) specifies seven years' advocacy/pleadership and High Court recommendation for the direct route. Therefore 'three years as Civil Judge only.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 26: The seven-year constitutional floor is not the whole recruitment rule.

MCQ 27. Article 234

Recruitment below district judge is made under rules after consultation with:

A. only the Governor's Council of Ministers. B. the UPSC and Supreme Court. C. the State Public Service Commission and the High Court. D. only the district administration.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'only the Governor's Council of Ministers.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'the UPSC and Supreme Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'the State Public Service Commission and the High Court.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'only the district administration.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 27: Neither consultee is constitutionally disposable.

MCQ 28. Article 235

Which authority holds constitutional control over district and subordinate courts?

A. The State Home Department. B. The Governor personally. C. The State Public Service Commission. D. The High Court under Article 235.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The State Home Department.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The Governor personally.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The State Public Service Commission.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The High Court under Article 235.' states the operative position.

Examiner trap 28: State finance and formal orders do not negate High Court control.

MCQ 29. Article 236

The constitutional expression 'judicial service' means:

A. a service exclusively intended to fill district-judge and lower civil judicial posts. B. every legal post under the State. C. only High Court registry service. D. all executive magistrates.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'a service exclusively intended to fill district-judge and lower civil judicial posts.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'every legal post under the State.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'only High Court registry service.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'all executive magistrates.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 29: Legal work or magisterial title alone does not place a person in the judicial service.

MCQ 30. Gram Nyayalayas

Which statement is correct under the Gram Nyayalayas Act, 2008?

A. Every village constitutionally must have one. B. A notified Gram Nyayalaya has only the civil and criminal jurisdiction assigned by the Act and Schedules. C. It may try every non-compoundable offence. D. It is a High Court bench.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'Every village constitutionally must have one.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'A notified Gram Nyayalaya has only the civil and criminal jurisdiction assigned by the Act and Schedules.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'It may try every non-compoundable offence.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'It is a High Court bench.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 30: Grassroots purpose does not create universal establishment or unlimited subject jurisdiction.

MCQ 31. Commercial Divisions

A Commercial Division in a High Court under the 2015 Act is linked to:

A. every writ petition of commercial importance. B. all criminal prosecutions involving companies. C. commercial disputes of specified value where the High Court has ordinary original civil jurisdiction. D. automatic transfer of every district suit.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'every writ petition of commercial importance.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'all criminal prosecutions involving companies.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'commercial disputes of specified value where the High Court has ordinary original civil jurisdiction.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'automatic transfer of every district suit.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 31: Do not universalise a charter-specific High Court arrangement.

MCQ 32. AIJS

Which statement accurately describes an All India Judicial Service?

A. It already recruits Civil Judges nationwide. B. It may be created by executive order. C. Article 312 requires unanimous State consent. D. Article 312 enables creation after a Rajya Sabha two-thirds-present-and-voting resolution and parliamentary law, but excludes posts below district judge.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'It already recruits Civil Judges nationwide.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'It may be created by executive order.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'Article 312 requires unanimous State consent.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'Article 312 enables creation after a Rajya Sabha two-thirds-present-and-voting resolution and parliamentary law, but excludes posts below district judge.' states the operative position.

Examiner trap 32: A constitutional enabling provision is not proof that the service exists.

PYQS AND ANSWER PRACTICE

Audited previous-year routes

PYQ-M1 - UPSC GS-II 2024, Q2 - direct access-to-justice route

Question (verified exact wording): "Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases?"

10 marks | 150 words

Model answer: Lok Adalats are statutory settlement forums under the Legal Services Authorities Act, 1987; arbitral tribunals are consensual adjudicatory forums under the Arbitration and Conciliation Act, 1996. An ordinary Lok Adalat facilitates compromise in pending or pre-litigation disputes. Its consensual award is final, binding and decree-like; if settlement fails, it cannot decide the contest on merits. It may handle civil disputes and compoundable criminal offences, never non-compoundable offences. An arbitral tribunal derives authority from an arbitration agreement, hears an arbitrable civil or commercial dispute and renders an award subject to limited statutory challenge; it does not conduct criminal prosecution. Permanent Lok Adalats are a distinct exception for specified public-utility-service disputes: after failed conciliation they possess bounded adjudicatory power under the 1987 Act. Thus both reduce ordinary-court burden, but one is public access-oriented settlement and the other private consensual adjudication.

Why this earns marks: It distinguishes source, consent, method, outcome and civil/criminal boundaries.

PYQ-M2 - UPSC GS-II 2025, Q13 - supporting appointments route

Verified neutral demand: Critically examine India's collegium system of judicial appointments in comparison with the United States.

15 marks | 250 words

Model answer: India's higher-judiciary appointment system seeks insulation from political control through judicial primacy. Article 217 formally vests High Court appointment in the President after specified consultations; the Second Judges Case (1993) and Third Judges Reference (1998) converted consultation into a collegium process. High Court proposals begin with the Chief Justice and two senior colleagues, then reach the Supreme Court collegium of the CJI and two senior-most judges, alongside executive inputs. The 2015 NJAC judgment invalidated the enacted

replacement because judicial independence was imperilled.

The United States uses presidential nomination and Senate confirmation. Public hearings and political accountability are clearer, but partisan polarisation can dominate selection. India's model better limits direct party control, yet opacity, delay, weak diversity disclosure and diffused responsibility reduce legitimacy.

Reform should preserve judicial primacy while publishing criteria and timelines, creating a permanent appointments secretariat, widening the search pool, recording privacy-sensitive reasons and requiring timely executive responses. The objective is accountable independence, not transplanting a politically polarised confirmation model.

Why this earns marks: It compares actors, values, risks and feasible reform without implying that every commission is unconstitutional.

PYQ-P1 - UPSC Prelims 2024, routed question 83

Verified demand: Writ of Prohibition.

Official Set-A answer: C.

Answer route: Prohibition prevents a lower court or tribunal from continuing without or beyond jurisdiction; certiorari generally quashes a completed defective decision.

PYQ-P2 - UPSC Prelims 2019, routed High Court jurisdiction question

Verified demand: High Court jurisdiction and Supreme Court review powers.

Answer withheld pending official UPSC key.

Answer route: Article 226 covers Fundamental Rights and other legal purposes; Supreme Court appellate authority does not extinguish High Court constitutional jurisdiction; L. Chandra Kumar protects Articles 226/227 review.

PYQ-P3 - UPSC Prelims 2021, routed retired-judge question

Verified demand: Retired Supreme Court judges and High Court powers.

Answer withheld pending official UPSC key.

Answer route: Article 224A concerns a retired High Court judge requested to sit in a High Court; Article 128 separately concerns retired Supreme Court judges sitting in the Supreme Court.

Exactly six original Mains questions with model answers

Original Q1 - 10 marks, answer in not more than 150 words

Question: Explain why Article 226 makes the High Court the everyday constitutional court.

Model answer: Article 226 makes the High Court the everyday constitutional court because it combines local access with broad remedial purpose. Unlike Article 32, which is itself a Fundamental Right and primarily enforces Fundamental Rights in the Supreme Court, Article 226 authorises writs for Fundamental Rights and "any other purpose." Article 226(2) also permits jurisdiction where material cause of action arises wholly or partly within the territory. Citizens can therefore challenge unlawful detention, refusal of statutory duty, jurisdictional error and invalid public action near the place of injury. L. Chandra Kumar (1997) further protects review under Articles 226/227 as part of the Basic Structure. Yet the power is not limitless: relief is discretionary, territorial nexus is necessary, and an efficacious alternative remedy ordinarily invites restraint subject to recognised exceptions. Article 226 is thus wider in purpose, locally accessible and constitutionally indispensable.

Original Q2 - 10 marks, answer in not more than 150 words

Question: Distinguish Articles 226 and 227.

Model answer: Article 226 is principally a public-law remedial jurisdiction; Article 227 is a supervisory jurisdiction over territorial courts and tribunals. Under Article 226, a High Court issues directions, orders and writs to enforce Fundamental Rights and other legal rights. Territorial cause of action matters, and relief remains discretionary. Article 227 enables judicial and administrative superintendence, including correction of grave jurisdictional or procedural failure, calling returns and framing general rules, subject to the Armed-Forces-law exception. Radhey Shyam (2015) cautions against treating ordinary civil-court orders as Article 226 writ targets; correction ordinarily lies under Article 227 or statutory procedure. Neither provision creates a routine second appeal. L. Chandra Kumar protects their review role as part of the Basic Structure. In short, Article 226 asks whether public power has violated law; Article 227 keeps

inferior adjudicatory institutions within lawful bounds.

Original Q3 - 15 marks, answer in not more than 250 words

Question: Examine how Articles 233-235 protect subordinate-judiciary independence.

Model answer: Articles 233-235 distribute recruitment and career control so that the State executive cannot dominate judges who routinely decide cases involving government. Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court. For direct recruitment, clause (2) requires the constitutional advocacy threshold and High Court recommendation. Article 234 governs recruitment below district judge through Governor-made rules after consultation with both the State Public Service Commission and High Court. Article 235 then vests control over district and subordinate courts in the High Court, covering posting, promotion, leave and disciplinary authority.

Chandra Mohan (1966) connected this design to Article 50 and rejected executive officers entering district judgeship through an unconstitutional route. Ranga Muhammad (1967) located transfer of serving district judges within Article 235, and Nripendra Nath Bagchi treated disciplinary control as integral.

The arrangement is not exclusive judicial administration: State law, finance, infrastructure, formal gubernatorial orders and valid appeal rights remain relevant. High Court control must also observe natural justice. The constitutional achievement is therefore shared appointment with judicially secured career control, preserving both democratic administration and adjudicative independence.

Original Q4 - 15 marks, answer in not more than 250 words

Question: Critically examine constitutional safeguards for High Court independence.

Model answer: High Court independence rests on mutually reinforcing personnel, financial, jurisdictional and administrative safeguards. Article 217 provides presidential appointment through constitutionally specified consultation; the Judges Cases add judicial primacy. Judges serve until sixty-two and do not hold office during executive pleasure. Article 218 applies the stringent Article 124(4)-(5) removal route based on proved misbehaviour or incapacity. Article 221 protects service conditions, while Article 229 places registry appointments with the Chief Justice and charges High Court administrative expenses on the State Consolidated Fund. Article 222 transfer requires CJI consultation. Articles 215, 226, 227 and 235 protect contempt authority, judicial review, superintendence and control over the district judiciary.

Practical independence nevertheless faces collegium opacity, delayed appointments, perceived punitive transfers, weak diversity, vacancies and infrastructure dependence. Total secrecy is not required for independence, while total disclosure may harm candidate privacy. Reform should preserve judicial primacy but institutionalise criteria, timelines, a permanent secretariat, diversity search, reasoned communication and predictable infrastructure funding.

Thus the Constitution strongly protects adjudication from direct political retaliation; accountable and timely administration must make that formal protection effective.

Original Q5 - 20 marks, answer in not more than 250 words

Question: Evaluate the case for an All India Judicial Service.

Model answer: Article 312 enables an All India Judicial Service only after the Rajya Sabha declares by a two-thirds majority of members present and voting that national interest requires it, followed by parliamentary law. Article 312(3) excludes posts below district judge. No AIJS exists as of 7 September 2026.

The case for AIJS is regular recruitment, common minimum standards, a wider national talent pool, planned training and greater mobility. It may reduce recurring district-judge vacancies and diversify recruitment beyond local professional networks. National data and a predictable calendar could support workforce planning.

However, district judging demands command of State law, local language and procedure. States and High Courts also raise federal, reservation, seniority, promotion and cadre-control concerns. A central examination cannot repair courtrooms, staff, prosecution or retention. Most importantly, AIJS design cannot dilute High Court consultation and control under Articles 233 and 235.

A viable model would remain district-judge-level, allocate officers to State cadres, require local-language competence, protect State reservation, preserve High Court appraisal and promotion, and coordinate training through judicial academies. AIJS is therefore defensible as a carefully federal professional service, not as centralisation of the

subordinate judiciary.

Original Q6 - 20 marks, answer in not more than 250 words

Question: Judicial pendency is a governance problem, not merely a judicial problem. Analyse with reference to High Courts and subordinate courts.

Model answer: Pendency is the accumulated stock of unresolved cases; delay is the time taken in an individual case. Both arise from interactions across government, courts and litigants. The Department of Justice's 1 July 2026 snapshot recorded 1,122 sanctioned High Court posts, 781 working judges and 341 vacancies, showing a capacity gap, but vacancies alone do not explain the queue.

Government departments generate repetitive litigation and delayed appeals. Police investigation, prosecution, summons, forensic support and prison production affect criminal trials. Court staff, records, translation, infrastructure, adjournments and fragmented case management affect throughput. Complex procedure and unequal legal assistance increase citizen costs.

Reform must therefore combine timely appointments under Articles 217 and 233-234, High Court control under Article 235, Malik Mazhar recruitment calendars, differentiated case tracks, reasoned adjournment control, mediation where lawful, government-litigation discipline and staff/infrastructure investment. e-Courts Phase III can digitise records, filing and payments, while NJDG supports diagnosis. Yet digital-only design can exclude poor, rural, disabled or language-disadvantaged litigants.

The goal is not disposal at any cost. Rights-sensitive case management, adequate reasons and fair hearing must accompany speed. Pendency falls sustainably only when every institution producing or processing litigation is accountable.